

2.	24CV1621	WATERMARK ON THE LAKE HOA vs. BRADLEY
Motion to Dissolve Preliminary Injunction		

This motion follows Defendant's two motions for reconsideration and/or relief pursuant to Code of Civil Procedure §§ 1008 and 473, both of which were denied.

The instant motion suffers from a variety of defects, including failure to comply with Local Rule § 7.10.05. The Opposition to the motion further cites non-compliance with various formatting requirements of the California Rules of Court (2.104, 2.105, 2.108, 2.109, 3.1110, 3.1113). Even if the Court were to disregard these technical formalities, the motion does not cite any basis for dissolving the preliminary injunction that was granted in an Order dated September 12, 2024, or the February 25, 2026, Order granting Plaintiff's motion for summary judgment.

Code of Civil Procedure § 533 allows for the dissolution of a preliminary injunction if the movant can show "material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order." No such showing has been made by this motion. Instead, the motion appears to be an attempt to relitigate the issues already determined in prior motions, hearings and Orders.

TENTATIVE RULING #2: DEENDANT'S MOTION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.